

Background

Plaintiff filed, on 1/15/26, an amended motion to vacate dismissal and enter judgment pursuant to stipulation. This motion is untimely. Plaintiff's initial motion to vacate dismissal and enter judgment was filed on 11/20/25. The court will address the merits of the initial motion only (hereinafter, Motion).

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.

Analysis

The parties entered into a CCP 664.6 agreement on 6/7/25 where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$1,813.12, plus costs, less any credits for payments received.

The Defendant made no payments.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 7/21/25.

Plaintiff filed a Memo on Costs on 11/20/25, allocating total costs to filing fees and service costs.

The Motion is unopposed. There is proof of mail service to an address at Sunflower Lane, in Concord. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,396.73

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-05653
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.
***HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER**

FILED BY: RAMOS VENTURA, MARCOS

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Strike Defendant's Answer, on November 19, 2025. The Motion is unopposed, but there is no proof that Defendant has been served.

Disposition

Motion will be continued to 3/10/26 9a.m. for Plaintiff to serve notice of motion on Defendant.

7. 9:00 AM CASE NUMBER: L25-05676

CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER

HEARING ON DEMURRER TO: TO FIRST AMENDED COMPLAINT BY DEFT ON 9-29-25

FILED BY: ATWATER, STEPHEN W

TENTATIVE RULING:

Background

Defendant filed a Demurrer to Plaintiff's first amended complaint on 9/29/25, with a Memo of Points and Authorities.

Plaintiff filed a Response and requested leave to amend should the Court sustain the Demurrer to any causes of Action.

Analysis

A party may demur if "[T]he pleading does not state facts sufficient to constitute a cause of action." Section 430.10(e) of the Code of Civil Procedure. The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39